

25STCV08158 25STCV08158

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Case Number: 25STCV08158 Hearing Date: August 13, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 08/13/2026

CASE NUMBER: 25STCV08158

CASE NAME: KRISTINA I FRISCH, et al. vs FCA US, LLC., et al.

MOVING PARTY: Plaintiffs Kristina I. Frisch
and Stephen B. Falk

OPPOSING PARTY: Defendant FCA US, LLC

PROCEEDING: Motion to Compel initial disclosures prusuant to CCP 871.26

RULING SUMMARY: Plaintiffs Kristina I. Frisch and
Stephen B. Faulk's Motion to Compel Initial Disclosures is granted in part as
to the service manual related to the alleged engine defect, and otherwise denied.

Defendant FCA US, LLC is to provide the
service manual within 10 days of this Court Ruling.

Sanctions of \$2,500.00 are imposed on
Defendant FCA US, LLC's counsel of record, Lauren K. VanDenburg. Sanction are to be paid to Plaintiffs' counsel
within 10 days of this Court Ruling.

Background

On

March 20, 2026, plaintiffs Kristina I. Frisch ("Frisch") and Stephen B. Faulk ("Faulk" and, collectively, "Plaintiffs") filed a Complaint against defendants FCA US, LLC ("FCA") and Glendale Chrysler Jeep Dodge Ram ("Glendale Dealer" and, with FCA, "Defendants"), alleging six causes of action for (1) Violation of Subdivision (d) of Civ. Code § 1793.2 against FCA; (2) Violation of Subdivision (b) of Civ. Code § 1793.2 against FCA; (3) Violation of Subdivision (a)(3) of Civ. Code § 1793.2 against FCA; (4) Breach of the Implied Warranty of Merchantability (Civ. Code §§ 1791.1, 1794, 1795.5) against FCA; (5) Negligent Repair against Glendale Dealer; and (6) Fraudulent Inducement – Concealment against FCA.

Plaintiffs

allege that on or about April 13, 2023, they entered into a warranty contract with FCA regarding a 2023 Chrysler Pacifica with vehicle identification number 2C4RC1S70PR554976 (the "Subject Vehicle"), manufactured and/or distributed by FCA; the warranty contract included various warranties; defects and nonconformities o warranty manifested themselves within the applicable express warranty period, including but not limited to an engine defect; FCA had a duty to promptly offer to repurchase or replace the Subject Vehicle at the time it failed to conform the Subject Vehicle to the terms of the express warranty after a reasonable number of repair attempts; and FCA did not do so. Regarding Glendale Dealer, Plaintiffs allege that it negligently repaired the Subject Vehicle.

On June

3, 2025, Defendants filed a Demurrer with Motion to Strike. The Demurrer was sustained with leave to amend as to the Fifth Cause of Action (Negligent Repair) and overruled otherwise. The Motion to Strike was denied as moot.

On

October 13, 2026, Hon. Nicholas F. Daum recused himself. On December 05, 2025, the case was reassigned to Dept. 37, not Dept. 413.

On

February 13, 2026, FCA filed its Answer.

On May 7,

2026, Plaintiffs filed this Motion to Compel Initial Disclosures Pursuant to Code Civ. Proc. § 871.26 ("Motion to Compel"). FCA filed its Opposition on July 31, 2026. On August 06, 2026, Plaintiffs

filed their Reply.

LEGAL STANDARD

Claims against vehicle manufacturers under the Song-Beverly Consumer Warranty Act ("Song-Beverly Act") are subject to special discovery provisions when those manufacturers elect to be governed by Code Civ. Proc. § 871.20 et seq., implemented by the Legislature to address the growing number of cases related to Song-Beverly restitution or replacement of motor vehicles. (Code Civ. Proc. § 871.20(a).) The operative statute requires an initial disclosure and certain specified documents within 60 days of the filing of the defendant's responsive pleading. (Code Civ. Proc. § 871.26, subd. (b) [60-day requirement], subds. (f)-(h) [defining documents and information to be produced].) The statute further requires the parties to make available the plaintiff and the defendant, or if the defendant is not a natural person, the person who is most qualified to testify on the defendant's behalf, for limited depositions within 120 days. (Id., subd.(c).)

The failure to produce as required under these provisions warrants the following sanctions, on an escalating basis:

(j) Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows:

(1) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b).

(2) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to

comply with the provisions relating to depositions as prescribed in subdivision (c).

(3) For a plaintiff's repeated noncompliance with subdivision (b), (c), or (d), a court shall order the case dismissed without prejudice and the plaintiff's attorney to be responsible for costs awarded to the manufacturer.

(4) For a manufacturer's or defendant's repeated noncompliance with subdivision (b), (c), or (d), a court shall order that evidentiary sanctions attach precluding the manufacturer or defendant from introducing evidence at trial regarding whether the motor vehicle had a nonconformity that substantially impaired the use, value, or safety of the motor vehicle, or whether the motor vehicle was repaired to match the written warranty after a reasonable number of opportunities to do so.

(Id.,
subd. (j)(1)-(4).)¿

This
section does not apply to a party who is not represented by counsel.
(See Id., subd. (k).)

DISCUSSION

Plaintiffs' argument that FCA has failed to comply with section 871.26 disclosures is based upon the following contentions: (1) that FCA has not provided verifications with its disclosures pursuant to Code Civ. Proc. § 871.26(h); (2) that a simple VIN search returns the majority of mandatory disclosures; and (3) that FCA has failed to produce (a) complete DealerCONNECT records; (b) autopay claims; (c) trouble not found/unverified complaint claims; (d) LOP 85-41-XX-XX AND LOP 08-19-XX-40 records; (e) all applicable service manuals; and (f) complete records of Technical Service Bulletins ("TSBs"), Informational Service Bulletins ("ISBs"), Customer Satisfaction Notifications ("CSNs"), and Rapid Service Updates ("RSUs") applicable to the Subject Vehicle.

FCA
argues that the motion is moot because it has produced the required documents

and, Plaintiff does not show that FCA failed to produce a required statutory category. FCA asserts that initial disclosures under section 871.26 are not tantamount to discovery through the Civil Discovery Act, and Plaintiff cannot use the statute to obtain broader discovery than the statute provides. As such, FCA argues that Plaintiffs' reliance on *Higginson v. Kia Motors*

America,

Inc. (2026) 118 Cal.App.5th 316 ("*Higginson*") is misplaced, because *Higginson* concerns discovery under the Civil Discovery Act. FCA further argues that Plaintiffs' demand for all records is overbroad and not required by section 871.26, and sanctions are unwarranted.

In

reply, Plaintiffs identify the following categories as completely unanswered;

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Category (1) Category 1 — Owner's Manual (§ 871.26(h)(1));

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Category 9 Technical Service Bulletins (§ 871.26(h)(9));

.

Category 10 – Information Service Bulletins (§ 871.26(h)(10))

.

Category 12 — Warranty Policies and Procedure Manuals (§ 871.26(h)(12));

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Category 13 — Service Manuals (§ 871.26(h)(13));
and

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Category 17 — Warranty Extensions (§ 871.26(h)(17)).

Plaintiff

contains the following categories are incomplete:

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Category 6 — Motor Vehicle Information Reports /
PDI (§ 871.26(h)(6));

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Category 7 — Entire Warranty Transaction History
(§ 871.26(h)(7)); and

.

Category 8 — Field Actions (§ 871.26(h)(8)).

Plaintiffs note that FCA has not
objected based upon the need for a protective order.

FCA correctly points out that Higginson
is not applicable to the issues Plaintiffs raise regarding FCA's 871.26
disclosures.

FCA is
also correct that section 871.26 does not include a requirement that disclosures
be accompanied by a verification. Had the Legislature wanted to include a
verification requirement in connection with the disclosures, it would have done
so, as it did in connection with the provisions of the Civil Discovery
Act. Plaintiffs cite no applicable authority
imposing a verification requirement for initial disclosures under Code of Civil
Procedure section 871.26. And Plaintiffs'
citation to section 2016.090(a)(5) is misleading, in that the quotation
Plaintiffs included in their Points and Authorities, that the disclosures ""shall
be verified either in a written declaration by the party or the party's
authorized representative, or signed by the party's counsel" omits the first
part of subdivision (a)(5), which states:
"A party's disclosures under this section shall be verified . . .
." (Code Civ. Proc. § 2016.090(a)(5) (emphasis
added).) Plaintiffs' counsel needs to be
more careful in the citations they provide to the Court to make sure that they
are not misleading by omission.

In

light of the foregoing, the arguments surrounding TSBs, ISBs, CSNs, and RSUs based on lack of verification are not supported by authority. (See Mtn. at G.) Further, Plaintiffs concede that all TSBs applicable to the Subject Vehicle have been produced.

Plaintiffs

have not explained what disclosure categories listed in section 871.26(h) would require FCA to produce DealerConnect Report, AutoPay Claims, Complaint Claims as well as LOP records. Therefore, their request for an order compelling disclosure of those documents is denied.

Plaintiffs

also have not stated a basis for their request that the Court compel FCA to produce service manuals for any alleged defects other than the engine defect. Plaintiffs alleged that the subject vehicle suffered from an engine defect. (Compl. ¶¶ 16-17.) In their motion, Plaintiffs assert: "For a 2023 Chrysler Pacifica with alleged defects in the engine, transmission, and electrical systems, FCA must produce service manuals for each of these systems. FCA's failure to produce service manuals for all three systems is a material omission." (Mtn. at 12:21-23.)

Section

871.26 requires a defendant to produce "service manuals reasonably related to the nonconformities pertaining to the motor vehicle." (Code Civ. Proc. § 871.26(h)(13).) FCA offered no evidence that it produced service manuals reasonably related to the alleged engine defect. Its statement of compliance in its Opposition does not address service manuals, even those relating to the alleged engine defect. The Court grants the motion to compel for this category.

Plaintiffs

seek \$2,500.00 in sanctions. Section 871.26(j)(1) of the Code of Civil Procedure provides: "Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows: [¶] (1) A ... two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney ..., paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b)."

In

light of the noncompliance with regard to production of the service manual, as noted

above, the Court imposes a \$2,500.00 sanction on defense counsel of record, Lauren K. VanDenburg.

Conclusion

Plaintiffs

Kristina I. Frisch and Stephen B. Faulk's Motion to Compel Initial Disclosures is granted in part as to the service manual related to the alleged engine defect, and otherwise denied.

Defendant

FCA US, LLC is to provide the service manual within 10 days of this Ruling.

The Court

orders sanctions of \$2,500.00 against defendant FCA US, LLC's counsel of record, Lauren K. VanDenburg. Sanctions are to be paid to Plaintiffs' counsel within 10 days of this Ruling.

Date: 08/13/2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court